

# 25NNCV04121 25NNCV04121

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-31

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[TENTATIVE] ORDER GRANTING DEFENDANT YURI STEIN'S MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, REQUESTS FOR PRODUCTION, SET ONE and GRANTING MONETARY SANCTIONS

## I. INTRODUCTION

Plaintiffs Boris Rozman and Inessa Rozman sued Defendant Yuri Stein ("Defendant") alleging that Defendant failed to make payments to Plaintiffs under a loan agreement. Plaintiffs filed their Complaint on June 13, 2025.

On February 19, 2026, the Court granted Defendant's motions to compel responses to Form Interrogatories, Set One, and Requests for Production, Set One, after finding Plaintiff's original responses were unverified and therefore tantamount to no responses. The Court ordered Plaintiff to serve verified, code-compliant responses.

On April 6, 2026, Defendant filed the instant motions to compel further responses to Form Interrogatories, Set One ("FROGS") and Requests for Production, Set One ("RFP"), contending that Plaintiff's amended responses remain incomplete and fail to comply with the Discovery Act. No opposition has been filed.

## II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.

(2) An objection to a particular request is without merit or too general

### III. ANALYSIS

#### FROGS, Set One

Defendant moves to compel further responses to Form Interrogatories, Set One, Nos. 2.6, 8.2, 9.1, 9.2, 12.1, and 50.2.

The Court previously granted Defendant's motion to compel Plaintiff's responses to these interrogatories after determining Plaintiff's original responses were unverified and therefore tantamount to no responses. Plaintiff thereafter served amended responses. Defendant contends the amended responses remain incomplete and noncompliant with the Discovery Act. (Motion, pp. 4-6.)

Having reviewed the amended responses and the Separate Statement, the Court agrees that further responses are warranted. Several responses fail to answer all subparts of the interrogatories, omit required identifying information, or provide only partial responses. For example, Plaintiff fails to provide complete employment information in response to Form Interrogatories Nos. 2.6 and 8.2, identifies litigation expenses rather than damages attributable to the incident in response to No. 9.1, fails to adequately identify documents and the persons possessing those documents in response to No. 9.2, omits the required contact information for individuals with knowledge in response to No. 12.1, and provides no substantive response to No. 50.2.

The Court agrees that Plaintiff has not provided complete, code-compliant responses to the interrogatories at issue. Code of Civil Procedure section 2030.220 requires that interrogatories be answered as completely and straightforwardly as the information reasonably available permits. The amended responses omit required information, fail to answer all subparts, and, in several instances, are incomplete or nonresponsive. The Court finds further verified responses are warranted.

The Court GRANTS the motion to compel further in its entirety. Plaintiff is to provide further code-complaint responses to FROGS Nos. 2.6, 8.2, 9.1, 9.2, 12.1, and 50.2.

#### RFP, Set One

Defendant moves to compel further responses to Requests for Production, Set One, Nos. 1–20.

The Court previously granted Defendant's motion to compel Plaintiff's responses to these requests after determining Plaintiff's original responses were unverified and therefore tantamount to no responses. Plaintiff thereafter served amended responses. Defendant contends the amended responses remain incomplete and noncompliant with the Discovery Act. (Motion, pp. 4-6.)

Having reviewed the amended responses and Separate Statement, the Court agrees that further responses are warranted.

#### RFP No. 1

This interrogatory seeks documents in Plaintiff's possession that relate to Defendant. Plaintiff objects, however, were waived. Thus, no code complaint response. Thus, compel further.

#### RFP Nos. 2, 3, 6, 7, 8 and 12

These requests seek various categories of documents relating to the subject property, communications, the loan file, payment history, documents identified in interrogatory responses, and related communications. Plaintiff states that he "will comply" and, in some instances, identifies documents being produced. However, the responses do not state that all responsive documents within Plaintiff's possession, custody, or control have been produced, as required by Code of Civil Procedure section 2031.220. Several responses also reserve the right to supplement, leaving Defendant unable to determine whether production is complete. The Court compels further verified, code-compliant responses.

RFP Nos. 4, 5, 9, 10 and 13

These requests received responses indicating that no responsive documents exist or that Plaintiff was unable to comply. Although several responses state that Plaintiff conducted a diligent search and reasonable inquiry, they do not satisfy Code of Civil Procedure section 2031.230. The responses fail to specify whether the requested documents never existed, were destroyed, lost, misplaced, or are no longer within Plaintiff's possession, custody, or control. Nor do they identify any person or entity believed to possess the requested documents, if known. The Court compels further verified, code-compliant responses.

RFP Nos. 11, 14 and 15

Plaintiff responds only that "investigation and discovery still continue" and reserves the right to amend the responses. These responses neither state that Plaintiff will comply with the requests nor provide a code-compliant representation of inability to comply. Such responses are incomplete and do not satisfy the Discovery Act. The Court compels further verified, code-compliant responses.

Monetary sanctions

Defendant requests monetary sanctions in the amount of \$4,873.41 in connection with the motion to compel further responses to Form Interrogatories and \$5,673.41 in connection with the motion to compel further responses to Requests for Production.

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

The Court finds monetary sanctions are warranted. However, because the motions arise from the same discovery dispute and involve substantially similar issues, the Court finds the amount of attorney's fees requested to be excessive. The Court instead awards attorney's fees based on 2.5 hours of reasonable work at counsel's hourly rate of \$800, for a total of \$2,000.00, plus two filing fees totaling \$146.82, for a total monetary sanction of \$2,146.82. (Lisitsa Compel Further Form Interrogatory Decl., ¶¶ 26–27; Lisitsa Compel Further Request for Production Decl., ¶¶ 28–29.)

#### IV. CONCLUSION

Defendant's motions to compel further responses to FROGs, Set One, and RFP Set One are GRANTED in their entirety. Plaintiff shall serve verified, code-compliant further responses, without objections, within 30 days of notice of this order.

Plaintiff shall pay monetary sanctions to Defendant in the amount of \$2,146.82 within 30 days of notice of this order.

Defendant to give notice.

Dated: July 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT